

3. Where the number of Representatives in Congress to which a State is entitled under the present apportionment pursuant to the Act of June 18, 1929, is the same as the number under the last previous apportionment (Act of August 8, 1911) and the election districts are unchanged, elections of Representatives may be conducted in the same manner as before the reapportionment. P. 374.
 4. Where the number of Representatives for a State has been increased by the new apportionment, the additional Representatives, if no new districts are created, may be elected by the State at large under the clause of the Constitution (Art. I, § 2) providing that "The House of Representatives shall be composed of Members chosen every second year by the People of the several States." *Id.*
 5. Where the number of Representatives has been decreased by the new apportionment, all the Representatives must be elected by the State at large unless and until new districts are created. *Id.*
 6. The conclusions set forth in the last three paragraphs, *supra*, are consistent with the general provisions (§§ 3-5, inclusive) of the reapportionment Act of August 8, 1911; and it is therefore unnecessary to decide whether those parts of the Act remain in force since the new apportionment. P. 373.
 7. Inclusion of an earlier statutory provision in the United States Code does not operate as a re-enactment. *Id.*
- 184 Minn. 228; 238 N. W. 494, reversed.

CERTIORARI, 284 U. S. 616, to review a judgment affirming the dismissal of a suit to enjoin the Secretary of State of Minnesota from acting under a measure of the legislature purporting to redistrict the State for congressional elections. The bill sought to have all filings for nomination declared illegal. There was first an interlocutory appeal from an order sustaining a demurrer.

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Messrs. Henry N. Benson, Attorney General of Minnesota, and *William H. Gurnee*, Assistant Attorney General, for respondent.